

CORAM : Hon'ble Shri Justice S. Pujahari

CRLMC No.5061 of 2014

Dibya Sankar Mishra ... Petitioner

- Versus -

Gobardhan Dash ... Opp. Party

ORDER

14. 7.10.2020 In the wake of the pandemic Covid-19, the case is taken up through V.C.

Heard Mr. Devashish Panda, learned counsel appearing for the petitioner and learned counsel appearing for the opposite party through V.C.

2. This application under Section 482 Cr.P.C has been filed by the petitioner with a prayer to quash the proceeding in 1.C.C. Case No.3 of 2014 on the file of the learned Nayadhikari-cum-J.M.F.C., Junagarh filed by the opposite party wherein cognizance has been taken and the petitioner has been proceeded with for alleged commission of offence punishable under Section 125(A) of the Representation of the People Act, 1951, as he alleged to have filed an affidavit suppressing the fact that he owned a house in Raipur in the state of Chhatishgarh mentioned in detail in the complaint petition, while filing of nomination as a candidate to contest

for Member of Legislative Assembly of Odisha to represent Junagarh Assembly Constituency in the election held in the year 2014.

3. It appears that the learned trial court basing on the complaint petition, statement of the witnesses examined, so also the documents made available to the Court by the complainant obtained through Right to Information Act from the Chhatishgarh Housing Board, Raipur indicating the petitioner to have been allotted house property and the copy of petitioner's affidavit filed during filing of his such nomination wherein it has not been indicated that he owns such property, held that prima facie materials are there against the petitioner to proceed against him for commission of offence under Section 125A of the Representation of the People Act, 1951 and, as such, proceeded against him.

4. Challenging the same, the petitioner has filed this petition on the ground that the allegation made in the complaint is false and frivolous inasmuch as by the time the petitioner had filed the affidavit, he had already transferred the land by registered deed of sale and, as such, there being no suppression of owning the said property, the prosecution

is liable to be quashed. The copy of the Sale Deed executed which was registered one is also filed with other supporting documents to substantiate such plea of the petitioner.

5. A counter affidavit has been filed in this case by the complainant wherein genuineness of sale deed filed is disputed and in alternative averment has been made indicating that such transfer, if any, is void inasmuch as though the lease deed indicates that the property was leased out in favour of the petitioner and his spouse, but the transfer was made by the petitioner alone so also the same is contrary to the lease agreement as well as N.O.C. issued and, as such, no title is conveyed to the vendee though such deed of sale by the petitioner. Therefore, the petitioner continued to be the owner of such property notwithstanding such transfer but has not disclosed the same in his affidavit. So also it has been pleaded that besides the same, the petitioner has also given misled information about situs immovable property owned by him in the district of Kalahandi and his residence in his affidavit. As such, prima facie case under Section 125(A) of the Representation of the People Act, 1951 is made out against him. Hence, the petition filed is devoid of merit and

liable to be dismissed.

6. During the course of hearing, Mr. Devashish Panda, learned counsel appearing for the petitioner submits that in view of the fact that the property in question was not there in the name of the petitioner on the date he filed an affidavit as he had transferred the same through a registered deed of sale to the vendee, so also before the learned Magistrate no materials were being there to indicate that on the very date of nomination/affidavit, the said property was there in the name of the petitioner, as because he had acquired the property on 19.12.2007 as revealed from the information obtained through the R.T.I., the learned Magistrate should not have proceeded against the petitioner on the statement of the complainant and his witnesses alleging the commission of the said offence. The petitioner having already transferred the property in question by the time he had sworn the affidavit, the prosecution is liable to be quashed in exercise of its inherent power under Section 482 of Cr.P.C. to prevent the abuse of the process of Court inasmuch as in the aforesaid factual backdrop, bleak is the chance of conviction, submits the counsel for the petitioner.

7. Learned counsel for the opposite party fairly submits that though on the date of the filing of affidavit, the house property was already transferred, as revealed from the registered deed filed, but such transfer having been made in violation of the term of lease granted so also the N.O.C., as such, the transfer is non-est in the eye of law. Notice of the Court has also been drawn to the counter affidavit that the petitioner had also suppressed the information of situs of his immovable property in Kalahandi and his residence. Hence, prima facie material is there against the petitioner, this Court, therefore, should be loathed in interfering with the impugned order of cognizance and proceeding, submits the counsel for the opposite party-complainant.

8. Before addressing the contention of the parties, it would be apposite to mention here that the learned Magistrate at the stage of taking cognizance and issuance of process is not required to make a detailed documentation and appreciation of materials, but only to see whether the materials produced prima facie discloses the commission of an offence and from the statement of the witnesses recorded under Section 200 of Cr.P.C. as well as inquiry/investigation, if any, made under Section 202 of

Cr.P.C. whether there are sufficient grounds for proceeding against the person alleged to have committed such offence. The aforesaid satisfaction of the learned Magistrate is based on prima facie view of the materials on record indicating the commission of offence is well settled.

In this regard, reliance can be placed on a decision of the Apex Court in the case of ***Rashmi Kumar v. Mahesh Kumar Bhada, reported in (1997) 2 SCC 397*** wherein the Apex Court have held that at the time of taking cognizance of the offence, the Court has to consider only the averments made in the complaint or in the charge-sheet filed under Section 173, as the case may be. It is not open for the Court to sift or appreciate the evidence at that stage with reference to the material and come to the conclusion that no prima facie case is made out for proceeding further in the matter. It is equally settled law that it is open to the Court, before issuing the process, to record the evidence and on consideration of the averments made in the complaint and the evidence thus adduced, it is required to find out whether an offence has been made out. On finding that such an offence has been made out and after taking cognizance thereof, process would be issued to the

respondent to take further steps in the matters. If it is a charge-sheet filed under Section 173 of the Code, the facts stated by the prosecution in the charge-sheet, on the basis of the evidence collected during investigation, would disclose the offence for which cognizance would be taken by the court to proceed further in the matter. Thus it is not the province of the court at that stage to embark upon and sift the evidence to come to the conclusion whether offence has been made out or not.

9. So also with regard to exercise power under Section 482 of Cr.P.C. by High Court for quashing of cognizance, the Apex Court in the case of ***Divine Retreat Centre v. State of Kerala, reported in (2008) 3 SCC 542*** have held that there is nothing like unlimited arbitrary jurisdiction conferred on the High Court under Section 482 CrPC. The power under Section 482 has to be exercised sparingly, carefully and with caution only where such exercise is justified by the tests laid down in the Section itself. Section 482 does not confer any new power on the High Court but only saves the inherent power which the Court possessed before the enactment of the Criminal Procedure Code, 1973,. There are three circumstances under which the

inherent jurisdiction may be exercised, namely, (i) to give effect to an order under the CrPC, (ii) to prevent abuse of the process of court, and (iii) to otherwise secure the ends of justice.

10. In the case of ***B.S. Joshi v. State of Haryana, reported in (2003) 4 SCC 675*** the Apex Court have held that it is well settled that the powers under Section 482 have no limits. Of course, where there is more power, it becomes necessary to exercise utmost care and caution while invoking such powers. Exercise of such power would depend upon the facts and circumstances of each case but with the sole purpose to prevent abuse of the process of any court or otherwise to secure the ends of justice.

11. In the case of ***CBI vrs. A. Ravishankar Prasad,*** reported in (2009) 6 SCC 351, the Apex Court with regard to quashing of prosecution in exercise of power under Section 482 of Cr.P.C. by the High Court have held that inherent powers of High Court under Section 482 Cr.P.C. are meant to act *ex debito justitiae* to do real and substantial justice, for the administration of which alone it exists, or to prevent abuse of the process of court. These inherent powers can be exercised in the following category of cases: (i) to give effect

to an order under the Code; (ii) to prevent abuse of the process of court; and (iii) to otherwise secure the ends of justice. Extraordinary power under Section 482 Cr.P.C. should be exercised sparingly and with great care and caution. The High Court would be justified in exercising the power to prevent injustice and secure ends of justice. India has largely inherited provisions of inherent powers from English jurisprudence, and therefore principles decided by the English courts are of relevance. Crown Court has inherent power to protect its process from abuse. The English courts have also used inherent power to achieve the same objective.

12. Keeping in view the aforesaid law laid down by the Apex Court, the contention of the parties with regard to sustainability of order taking cognizance and the proceeding against the petitioner in the backdrop of the materials available to the court taking cognizance has to be addressed.

As it appears in the complaint, allegations were made that the petitioner suppressed the information in his affidavit sworn while filing the nomination regarding his owning a house property at Raipur allotted to him by

Chhatishgarh Housing Board. So also it is alleged that the petitioner had given misled information about the situs of his immovable property in the district Kalahandi and his residential address. The sworn statement of the petitioner and his witnesses are there before the court. So also the information obtained from Chhatishgarh Housing Board indicating the fact that the petitioner was allotted the house property in question in the year 2007. The said information obtained under the Right to Information Act after the date of nomination, was filed before the trial court. The copy of the affidavit of the petitioner filed with his nomination has also been filed in the court. In the affidavit, the petitioner had admittedly not given information that he owned such property at Raipur. But as it appears, no concrete material was produced with regard to misleading information regarding the situs of his immovable property in Kalahandi district and his residence. Such allegation of giving misleading information in the affidavit, therefore, appears to be vague and absurd. But, considering the other materials available with regard to suppressing the information regarding owning the house property at Raipur, it appears that materials are there disclosing the suppression of such

information. The court taking note of the same, particularly the allegation in the complaint about the house property at Raipur, coupled with the statement of the complainant and the witnesses recorded under Section 200 of Cr.P.C. as well as the information obtained and the copy of the offending affidavit filed held prima facie offence under Section 125A of the Representation of People Act, 1951 is made out against the petitioner for suppression of such information in the offending affidavit. The order of the learned Magistrate, therefore, cannot be found fault with for proceeding against the petitioner alleging the commission of offence under Section 125A of the Representation of People Act, 1951. Hence, the contention raised by the learned counsel for the petitioner that there was no material before the learned Magistrate to proceed against the petitioner must fail.

However, another contention has been raised by the learned counsel for the petitioner that even though prima facie the learned Magistrate was justified in taking cognizance, but in view of the fact that the petitioner had already transferred the house property through registered deed of sale, which has been filed in this Court and the same is of sterling quality, the Court should taking note of

the same quashed the cognizance, as hereinafter there is bleak chance of conviction in the presence of such sale deed transferring the property to others through registered deed of sale before the date the petitioner sworn the affidavit filed with nomination.

In the counter affidavit the opposite party-complainant had raised objection regarding genuineness of such sale deed and also in alternative regarding the same validly conveying the title of the property to the vendee as allegedly the lease was in favour of the petitioner and his wife, but the transfer was made by the petitioner alone that too before expiry of the clogged period to transfer the property mentioned in the lease agreement and the N.O.C. But during the course of hearing, the same was not advanced. The same is for the obvious reason that no such allegation was made in the complaint that the petitioner had a wife on the date he filed the nomination and owned the property along with her, but transferred the same individually and also the same was in violation of the terms of lease agreement and the N.O.C. filed along with sale deed for transfer indicates that the petitioner was the sole allottee of the property in the year 2007, which was

subsequent to the lease agreement filed, so also in his affidavit filed along with the nomination does not indicate Sushmita Mishra continued to be his wife then. No contention was also raised about the allegation of misleading information given on situs of immovable property in Kalahandi District and also residence, as the same was vague and absurd and no concrete material was produced in the court taking cognizance. However, the validity of sale is disputed on the ground that it being in violation of the terms of the N.O.C. issued, the transfer was void and, as such, the petitioner continued to be the owner thereof and hence he is guilty of suppression of such information. Therefore, the sale deed is of no assistance to the petitioner challenging the continuance of the proceeding, submits the learned counsel for the opposite party-complainant.

13. Needless to say that the sale deed filed was not there before the trial court. The petitioner has filed the same before this Court in the present CRLMC. If the sale deed is taken into consideration by this Court, then the case of the prosecution against the petitioner stands demolished, inasmuch as the other allegations regarding the misleading

information has already been held to be absurd and vague one. Now, it is to be examined whether the Court can look into the same filed in this petition to quash a proceeding under Section 482 of Cr.P.C.

14. The Apex Court in number of cases have held that power under Section 482 of Cr.P.C. is required to be exercised *ex debito justitiae* and also to prevent abuse of the process of court, some of which have been cited supra. Furthermore, there is no limitation on such power to look into such material produced by the petitioner for quashment of the prosecution in a petition under Section 482 of Cr.P.C., if the same is of sterling quality, to prevent the abuse of the process of Court or to secure the ends of justice. Reliance in this regard can be placed in the case of ***State of Orissa v. Debendra Nath Padhi, reported in (2005) 1 SCC 568*** wherein the Apex Court placing reliance in earlier decision of the Apex Court, *i.e.*, in the case of *Minakshi Bala v. Sudhir Kumar, reported in (1994) 4 SCC 142* have held as follows:-

“20. Reliance placed on behalf of the accused on some observations made in Minakshi Bala v. Sudhir Kumar to the effect that in exceptional cases the High Court can look into only those documents which are unimpeachable and can be legally translated into relevant evidence is misplaced for the purpose of considering the point in issue in these matters. If para 7 of the judgment

where these observations have been made is read as a whole, it would be clear that the judgment instead of supporting the contention sought to be put forth on behalf of the accused, in fact, supports the prosecution Para 7 of the aforesaid case reads as under:

“7. “If charges are framed in accordance with Section 240 CrPC on a finding that a prima facie case has been made out - as has been done in the instant case - the person arraigned may, if he feels aggrieved, invoke the revisional jurisdiction of the High Court or the Sessions Judge to contend that the charge-sheet submitted under Section 173 CrPC and documents sent with it did not disclose any ground to presume that he had committed any offence for which he is charged and the revisional court if so satisfied can quash the charges framed against him. To put it differently, once charges are framed under Section 240 CrPC the High Court in its revisional jurisdiction would not be justified in relying upon documents other than those referred to in Sections 239 and 240 CrPC; nor would it be justified in invoking its inherent jurisdiction under Section 482 CrPC to quash the same except in those rare cases where forensic exigencies and formidable compulsions justify such a course. We hasten to add even in such exceptional cases the High Court can look into only those documents which are unimpeachable and can be legally translated into relevant evidence.

21. It is evident from the above that this Court was considering the rare and exceptional cases where the High Court may consider unimpeachable evidence while exercising jurisdiction for quashing under Section 482 of the Code. In the present case, however, the question involved is not about the exercise of jurisdiction under Section 482 of the Code where along with the petition the accused may file unimpeachable evidence of sterling quality and on that basis seek quashing, but is about the right claimed by the accused to produce material at the stage of framing of charge.”

15. So also placing reliance in the case of *Debendra Nath Padhi* (supra), the Apex Court in the case of ***Rukmini Narvekar v. Vijaya Satardekar, reported in (2008) 14***

SCC 1 have held that there is no scope for the accused to produce any evidence in support of the submissions made on his behalf at the stage of framing of charge and only such materials as are indicated in Section 227 CrPC can be taken into consideration by the Magistrate at that stage. However, in a proceeding taken therefrom under Section 482 CrPC the court is free to consider material that may be produced on behalf of the accused to arrive at a decision whether the charge as framed could be maintained. This appears to be the intention of the legislature in wording Sections 227 and 228 the way in which they have been worded and as explained in Debendra Nath Padhi case by the larger Bench therein to which the very same question had been referred.

16. From the aforesaid law laid down, it is clear that there is no absolute bar to look into the sale deed filed by the petitioner. The same is registered deed of sale executed by the petitioner before the date of nomination, transferring the house property situated at Raipur. The same was though disputed to be not genuine one, but as stated earlier ultimately no contention was advanced on the same. The only contention advanced on behalf of the opposite party-

complainant is that the sale deed was void being violative of the terms of the N.O.C., the petitioner continued to be the owner. The same is without any force inasmuch as the same was not held to be void when the petitioner filed the nomination. The petitioner, therefore, was no more owner of the property on the date he sworn the offending affidavit. Hence, it cannot be said that he suppressed information of owning such property in the alleged offending affidavit filed by not mentioning the same. In the presence of the sale deed, the prosecution case against the petitioner, therefore, is completely demolished and there is bleak chance of conviction of the petitioner. Hence, continuance of the prosecution against the petitioner on the basis of the complaint lodged with the aforesaid allegations would be an abuse of the process of Court, as such, the same is liable to be quashed to prevent such abuse of the process of Court.

17. Accordingly, the petition is allowed. Consequently, the proceeding against the petitioner pending in the court of Nayadhikari-cum-J.M.F.C., Junagarh is quashed.

18. The trial court on production of this order shall close the aforesaid proceeding against the petitioner.

The parties may utilize the copy of this order as per the High Court's Notice No.4587 dated 25.03.2020.

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S.Pujahari, J.